UNITED STATES DEPARTMENT OF COMMERCE
National Institute of Standards and Technology
Gaithersburg, Maryland 20899-0001

March 12, 2026

Donald Paul Smith
Via Email: dallasnamiyahdaddy@icloud.com

Dear Mr. Smith:

This letter is in response to your February 16, 2026, Freedom of Information Act (FOIA) request (Log #DOC-NIST-2026-000433) to the National Institute of Standards and Technology (NIST) in which you requested:

1. Target Keywords and Research Identifiers
All internal communications, emails, research drafts, and technical reports mentioning the following proprietary constants and frameworks authored by Donald Paul Smith (FatherTimeSDKP):
Lunar Drift Constant: "56.02µs" or "56.02 microseconds per day."
Mars Drift Constant: "477.14µs" or "477.14 microseconds per day."
Frameworks: "SDKP" (Size-Density-Kinetics-Position), "VFE Tier 8" (Vibrational Field Equations), "SD&N" (Shape-Dimension-Number), and "EOS" (Earth Orbital Speed).
Project Name: "SharonCare1" (Magnetic Motor / Induction Housing).
2. Digital Forensic & Access Logs
Any records or logs showing the institutional access, download, or "extraction" of data from the following source locations between **January 2024 and February 2026**:
Zenodo: DOI 10.5281/zenodo.18432021 and 10.5281/zenodo.18052963.
OSF (Open Science Framework): Project har2x ("Entanglement Genesis Theory").
GitHub: Repository FatherTimeSDKP.
WordPress: sharoncare1.wordpress.com.
3. Specific Institutional Interaction
Records of any internal discussions regarding the use of the aforementioned **56.02µs** or **477.14µs** offsets within the context of **LTC (Lunar Time Standard)**, **LunaNet**, or the **"Mars Clock"** development programs. This includes any "Notice of Systematic Logic Failure" or internal rebuttals citing "Donald Paul Smith" or "FatherTimeSDKP."

For the purpose of the FOIA, it has been determined that you are in the "all other" requester category. As such, chargeable services to you will include search and duplication fees, excluding the cost of the first 2 hours of search and the first 100 pages of duplication. We initially estimate this cost to be **$4,480.00**. Electronic payment may be made via "PAY.GOV" using the NIST Miscellaneous Payment Form (which will allow you to pay by credit card or ACH). On the "PAY.GOV" page, use the search box at the top of the page to search for "NIST" and on the resulting page select the NIST Miscellaneous Payment Form. <u>It is very important to state on the form that the payment is for a FOIA fee and reference your FOIA request number</u>

DOC-NIST-2026-000433 so our finance office will know how to post the payment. Please notify our office by email to foia@nist.gov to help expedite this process. Upon receipt of the $4,480 payment, we will begin the search, review and duplication of responsive documents.

Since this is just an estimate, if the actual cost for search and duplication of responsive documents is less than the estimate, the overage will be refunded promptly. Likewise, if the actual cost for search and duplication of responsive documents is more than the estimate, you will be required to pay the difference. Please be advised that charges are assessed whether or not responsive documents are located and whether or not any of these documents are exempt from disclosure under FOIA. Fee estimates are developed in good faith and are based on our reasonable judgement. However, due to the unique nature of each request and complexity of documents involved, actual costs may vary from the original estimate.

In your February 16, 2026, request for documents, you also requested a waiver of all FOIA processing fees. A fee waiver is appropriate when "disclosure of the requested information is in the public interest because it is likely to contribute significantly to public understanding of the operations or activities of the government and is not primarily in the commercial interest of the requester." 5 U.S.C. § 552 (a) (4) (A) (iii). I considered six factors in my determination as to whether your request satisfies this statutory standard: (1) whether the subject of the requested records concerns "the operations of activities of the government"; (2) whether the disclosure is "likely to contribute" to an understanding of government operations or activities; (3) whether disclosure of the requested information will contribute to the understanding of the general public; (4) whether the disclosure is likely to contribute "significantly" to public understanding of government operations or activities; (5) whether the requester has a commercial interest that would be furthered by the requested disclosure; and (6) whether any such commercial interest outweighs the public interest in disclosure. See 15 C.F.R. § 4.11(l).

Based on the information you have provided, I have decided to deny your request for a fee waiver. In reaching my conclusion I have analyzed the above factors as they apply to the circumstances of your request. If you wish to pursue your request for a fee waiver, please provide additional information related to the above factors. I will reconsider your request upon receipt of the additional information.

If we do not receive payment or revised request within thirty (30) calendar days of the date on this letter, we will assume that you are no longer interested in receiving the documents requested and stop processing your request.

If you have questions or concerns or would like to discuss any aspect of your request, you may contact either the analyst who processed your request, Maureen O'Reilly, by telephone at 301-975-3189, or me, the FOIA Public Liaison/Freedom of Information Act Officer, at 301-975-4074. We may also be reached at foia@nist.gov.

Please refer to your FOIA request tracking number, DOC-NIST-2026-000433, when contacting us.

In addition, you may contact the Office of Government Information Services (OGIS) at the National Archives and Records Administration to inquire about the FOIA mediation services they offer. The contact information for OGIS is as follows:

Office of Government Information Services
National Archives and Records Administration
8601 Adelphi Road-OGIS
College Park, Maryland 20740-6001
e-mail at ogis@nara.gov
telephone at 202-741-5770; toll free at 1-877-684-6448, or facsimile at 202-741-5769

You have the right to appeal this response to your FOIA request. An appeal must be received within 90 calendar days of the date of this response letter. Address your appeal to the following office:

Assistant General Counsel for Employment, Litigation and Information
U.S. Department of Commerce
Office of the General Counsel, Room 5896
1401 Constitution Ave., NW
Washington, D.C. 20230

An appeal may also be sent by e-mail to FOIAAppeals@doc.gov. The appeal should include a copy of the original request and an initial denial, if any. All appeals should include a statement of the reasons why the records requested should be made available and why the adverse determination was in error.

The appeal letter, the envelope, and the e-mail subject line should be clearly marked "Freedom of Information Act Appeal." The e-mail and office are monitored only on working days during normal business hours (8:30 a.m. to 5:00 p.m., Eastern Time, Monday through Friday). FOIA appeals posted to the e-mail box, or office after normal business hours will be deemed received on the next normal business day. If the 90th calendar day for submitting an appeal falls on a Saturday, Sunday or legal public holiday, an appeal received by 5:00 p.m., Eastern Standard Time, the next business day will be deemed timely.

Sincerely,

AMY EGAN Digitally signed by AMY EGAN
Date: 2026.03.12 14:58:51 -04'00'

Amy Egan
Acting Freedom of Information Act Officer